

24STCV25655 24STCV25655

County: los-angeles

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 28, 2026

CASE NUMBER

24STCV25655

MOTION

Motion for Protective Order

MOVING PARTIES

Defendants City of Los Angeles and Michael Pounds

OPPOSING PARTIES

Plaintiffs Ricardo Ramirez, Sr., Renee Villalobos, and the
Estate of Ricardo Ramirez, Jr., by and through Ricardo Ramirez, Sr.

MOTION

Plaintiffs

Ricardo Ramirez, Sr., Renee Villalobos, and the Estate of Ricardo Ramirez, Jr., by and through Ricardo Ramirez, Sr. ("Plaintiffs") brought the instant action against Defendants City of Los Angeles and Michael Pounds ("Defendants") based on the death of Decedent Ricardo Ramirez, Jr. ("Decedent"). Defendants move for a protective order regarding the deposition of Plaintiff Renee Villalobos ("Deponent").

ANALYSIS

Plaintiffs argue

Defendants' motion is procedurally improper because Defendants did not file a separate statement. No separate statement is required in connection with a motion for a protective order. (See Cal. Rules of Court, rule 3.1345, subd. (a) (Motion for protective order not listed among proceedings for which a separate statement is required].) Accordingly, Defendants' motion is proper.

Code of Civil

Procedure section 2025.420 provides, "[t]he court, for good cause shown, may make any order that justice requires to protect any . . . deponent . . . from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense"

Defendants seek a

protective order, requiring Plaintiffs' counsel to "limit personal insults, attempts to annoy, harass, and general incivility towards defense counsel to the breaks during the deposition of Plaintiff Renee Villalobos, or any time the parties are 'off the record' so that the deposition can be completed." (Notice of Motion for Protective Order, p. ii.) The Court cannot grant a protective order which imposes such vague limitations in advance of a deposition. Likewise, the Court cannot impose a protective order which directs Plaintiffs' counsel to "[r]efrain from speaking objections and coaching of the [sic] Renee Villalobos during testimony." (Ibid.)

Defendants also

seek a protective order to the effect "[i]nstructions 'not to answer' be limited to questions implicating privilege, privacy, or a legal contention." (Notice of Motion for Protective Order, p. ii.) Counsel cannot instruct a deponent not to answer any question unless the question implicates a privilege. (Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1014.) The

Court need not impose a protective order which simply restates the law applicable to depositions. Accordingly, the motion for protective order is denied.

If Defendants seek

to compel Deponent to appear and complete her deposition, Defendants must file a motion to compel under Code of Civil Procedure section 2025.450, subdivision (a), which provides, in relevant part, if a party "fails to . . . proceed with [a deposition], . . . the party giving the notice may move for an order compelling the deponent's attendance and testimony . . . described in the deposition notice."

The Court advises the parties the Court would grant such a motion, as the colloquy between the attorneys at the deposition was such the deposition could not continue.. (Declaration of Irving Estrada, Exhibit A, pp. 65-71.) Under the circumstances, the Court would be inclined to impose sanctions against Plaintiffs' counsel were Plaintiffs to oppose a motion to compel Deponent to appear and complete her deposition.

Likewise, if

Defendants seek to compel Deponent to answer any questions at deposition, Defendants must move to compel Deponent to answer deposition questions as outlined in Code of Civil Procedure section 2025.480, subdivision(a). (Code Civ. Proc., § 2025.480, subd. (a).)

Nonetheless, the

Court admonishes both parties and makes clear hereby its expectation they will resolve any and all issues concerning Deponent's continued deposition testimony without any need for Court intervention.

The Court declines

to award sanctions to Plaintiffs for costs incurred in opposing the motion, while noting Plaintiffs' counsel was combative and uncooperative in completing the deposition. (Declaration of Irving Estrada, Exhibit A, pp. 59-60, 62-63, 65, 67-69.) As such, the Court considers an award of sanctions to Plaintiffs would be unjust under the circumstances. (Code Civ. Proc., § 2025.420, subd. (h).)

Defendants are to give notice of the Court's ruling and to file proof of service of same.